DUBLIN UNIFIED SCHOOL DISTRICT MEASURE I

"Shall the measure to support quality education, provide local funding that cannot be taken by the State, maintain small class sizes, attract/retain quality teachers, and provide enhanced science, technology, engineering, visual and performing arts, reading, writing, and math programs, by renewing the expiring $96 school parcel tax, adding $48 per parcel, providing approximately $2,900,000 annually for nine years, with senior exemptions, annual inflation adjustments, independent oversight, and all funds locally controlled, be adopted?"	**YES**
	NO

COUNTY COUNSEL'S IMPARTIAL ANALYSIS OF MEASURE I

ANALYSIS BY THE COUNTY COUNSEL FOR THE COUNTY OF ALAMEDA OF A DUBLIN UNIFIED SCHOOL DISTRICT SPECIAL PARCEL TAX MEASURE

Measure I ("Measure"), a Dublin Unified School District ("District") special parcel tax measure, seeks voter approval to authorize the District to levy a nine-year special parcel tax, beginning on July 1, 2027, at the initial uniform rate of $144 per parcel per year in the first applicable tax year, then adjusted each tax year thereafter by the percentage change in the consumer price index to account for inflation on the cost of delivering programs and services supported by the parcel tax.

The District estimates the parcel tax, if passed, will provide approximately $2,900,000 annually. The District will use the revenue only for the purposes listed in the Measure, which include, but are not limited to: attracting and retaining qualified teachers and staff; maintaining small class sizes; providing enhanced science, technology, visual and performing arts, reading, writing, and math programs; supporting student wellness and academic intervention; and maintaining instructional materials, classroom technology, and school library collections.

If passed, as of July 1, 2027, the parcel tax will supersede and replace the District's Measure E, an existing parcel tax passed in 2019. If the measure fails, Measure E would continue until June 30, 2028, when it will cease to be in effect.

In addition to properties otherwise exempt from property taxes, the following people may apply to the District for exemptions on residential parcels owned and occupied as a principal residence: persons 65 years or older; persons receiving Supplemental Security Income for a disability; and persons receiving Social Security Disability Insurance Benefits who meet specified income requirements.

The Measure contains certain accountability provisions, including requiring the District to deposit parcel tax proceeds in a separate account, produce an annual report to the District's governing board from the District's chief fiscal officer detailing the amount of funds collected and expended and the status of any projects funded by the proceeds, and conduct an annual financial audit by the District's governing board to ensure parcel tax proceeds are spent for educational purposes. The District's governing board will also appoint a citizen oversight committee to review the District's use of parcel tax proceeds to ensure that they are expended for the purposes listed in the Measure.

A school district has the authority to levy special taxes upon approval by two-thirds of the votes cast on the special tax proposal. (Cal. Const. art. XIII A, § 4; art. XIII C, § 2; Cal. Gov't Code §§ 50075-50077, 50079, & 53722.) If two-thirds of the qualified electors voting on this Measure do not vote for approval, it will fail, and the District will not be authorized to levy the special parcel tax.

This Measure is placed on the ballot by the governing board of the District.

s/ ANDREA L. WEDDLE
Interim County Counsel

The above statement is an impartial analysis of Measure I, which is printed in full in this sample ballot pamphlet. If you desire an additional copy of the measure, please call the Elections Official's office at (510) 272-6933 and a copy will be mailed at no cost to you. You may also access the full text of the measure on the Alameda County website at the following address: www.acvote.org.

ARGUMENT IN FAVOR OF MEASURE I

Dublin Unified School District

Vote YES on Measure I to protect excellent Dublin schools, retain award-winning teachers, and preserve high-quality education for every student.

For nearly 20 years, Dublin's locally approved school parcel tax has helped Dublin Unified School District maintain outstanding academic programs, attract exceptional teachers, and prepare students for success in college and careers. **This vital local funding is now set to expire.**

Without Measure I, Dublin schools **will lose $2 million annually in locally controlled funding,** adding to the **$12 million already cut** from the District's general budget. Without this locally controlled funding, classrooms will face larger class sizes, reduced academic programs, and greater difficulty recruiting and retaining outstanding teachers.

Voting YES on I will prevent the most devastating cuts by:

- **Maintaining small class sizes**
- **Attracting and retaining high-quality teachers**
- **Protecting strong programs in math, science, literacy, engineering, technology, arts, and music**
- **Protecting at-risk students**
- **Keeping instructional materials and classroom technology up-to-date**

Importantly, Measure I updates parcel tax funding that has remained unchanged since 2008 — even as the cost of providing a quality education significantly increased. Measure I restores purchasing power so Dublin schools can continue delivering quality education for students.

Measure I continues strict fiscal accountability requirements that ensure all funds stay local to benefit Dublin schools and students:

- All funds stay in Dublin and **cannot be taken by the state or federal governments**
- Independent oversight committee and annual audits are required
- No funds may be used for administrators' salaries or pensions
- **Senior citizens remain exempt and do not need to reapply**

Excellent public schools strengthen our entire community, whether or not you have school-age children. Quality schools prepare students to be future leaders, **protect local property values,** strengthen our community, and keep Dublin a desirable place to live.

Please join parents, teachers, seniors, business leaders, and community members by voting YES on Measure I to protect Dublin schools.

s/TIM SBRANTI
Former Dublin Mayor / Community College Trustee / Longtime Dublin Resident

s/FREDY KADVA
Chair, DUSD Parcel Tax Oversight Committee / DUSD Parent

s/MICHAEL D'AMBROSIO
Principal, Amador Elementary School / Former Dublin High School Teacher

s/CATHERINE BROWN
Retired Dublin Teacher / 2018 DUSD Teacher of the Year / Longtime Dublin Resident

s/KASHEF QAADRI
Dublin City Councilmember / DUSD Parent / Dublin Education Alliance Board Member

NO ARGUMENT AGAINST MEASURE I WAS SUBMITTED

FULL TEXT OF MEASURE I

INTRODUCTION

The Dublin Unified School District ("District") provides its students with a high-quality and challenging education, ranging from preschool through adult education across 14 different school sites. Our excellent teachers and outstanding staff prepare students to excel in college, their careers and the competitive economy.

Since 2008 our community has supported a local parcel tax that provides locally-controlled funding for our schools. This funding, which has not been increased in 18 years, has helped to maintain the high level of reading, writing, math and science instruction in our schools and helps retain high-quality teachers in our classrooms. In addition, this funding maintains small class sizes that allow teachers to work more closely with students. All funds received stay in the District and none of the funds received are used for District office administrators' salaries.

The local parcel tax funding is set to expire soon. Without this local funding, the District would need to make significant cuts to teachers, academic programs, and student services, impacting the level of education the District is able to provide. The District has already made budget reductions in recent years due to substantial increases in operating costs. Without a renewal and increase of the District's expiring parcel tax, the District will be forced to make more significant cuts, including teacher layoffs, increases in class sizes and deep cuts to academic programs.

This proposed Measure provides needed funding to maintain programs, keep class sizes small, and avoid diminishing the quality of critical educational services provided by the District.

The proposed school parcel tax is temporary, will automatically expire in nine years, and cannot be renewed without voter approval. The proposed parcel tax Measure includes an exemption for seniors and low-income people with disabilities, the only exemptions allowed by law, and are designed to ensure that the cost is not a burden to those on fixed incomes.

The proposed parcel tax Measure requires fiscal accountability protections including an independent Citizens' Oversight Committee, annual audits and mandatory public disclosure to provide transparency and ensure funds are spent as promised.

SUMMARY STATEMENT OF THE MEASURE

"Shall the measure to support quality education, provide local funding that cannot be taken by the State, maintain small class sizes, attract/retain quality teachers, and provide enhanced science, technology, engineering, visual and performing arts, reading, writing, and math programs, by renewing the expiring $96 school parcel tax, adding $48 per parcel, providing approximately $2,900,000 annually for nine years, with senior exemptions, annual inflation adjustments, independent oversight, and all funds locally controlled, be adopted?"

PURPOSE OF THE MEASURE

The District proposes to levy and collect the parcel tax annually for nine (9) years as more fully described below under the heading "RATE AND PROCEDURE," and to implement accountability measures in connection with the education parcel tax to ensure that funds are used only for the following specific purposes:

- Attract and retain high quality teaching staff;
- provide enhanced science, technology, engineering, Visual and Performing Arts (VAPA), reading, writing and math programs for all students in all grade levels
- Prioritize class size reduction
- Protect student wellness and academic intervention programs
- maintain up-to-date instructional materials, classroom technology, and enhance book collections and programs at our school libraries

The Board of Trustees will not fund any program other than those listed above from the proceeds of the education parcel tax.

RATE AND PROCEDURE

Amount of Parcel Tax. Subject to two-thirds approval of the voters, this local funding measure and its parcel tax will be in effect for nine (9) years, commencing July 1, 2027. The parcel tax will be levied on each parcel of taxable real property (except exempt parcels, as described below), at the initial rate (base rate) of $144 per parcel per year in the first applicable tax year, and adjusted each tax year thereafter to account in part for the impact of inflation on the cost of delivering the educational programs and services supported by the parcel tax. The inflation adjustment for each subsequent tax year shall be calculated by multiplying the prior tax year's parcel tax rate with the annualized increase in the San Francisco-Oakland-Hayward Consumer Price Index released by the Bureau of Labor Statistics for a 12-month period preceding the beginning of the applicable tax year. In the event such index is no longer published, the Board shall adopt a comparable index of general price levels as it shall reasonably determine.

Method of Collection. The parcel tax will be collected by the Alameda County Tax Collector (the "County Tax Collector") at the same time as and along with, and will be subject to the same penalties as, general *ad valorem* taxes collected by said County Tax Collector. The tax and penalty will bear interest at the same rate as the rate for unpaid *ad valorem* property taxes until paid. Any tax levied will become a lien upon the properties against which taxes are assessed and collectible as herein provided.

The Board may adopt such additional or supplemental procedures as it deems necessary or convenient for the administration of the parcel tax.

Definition of Parcel. A "parcel of taxable real property" is defined as any unit of real property within the District's boundaries that receives a separate tax bill for *ad valorem*

property taxes from the County Tax Collector.

Exemptions. All property that is otherwise exempt from property taxes levied in any year will also be exempt from the parcel tax in such year. In addition, exemptions shall be available on residential parcels owned and occupied as a principal residence by the following persons, upon application to the District:

- persons who are 65 years or older;
- persons receiving Supplemental Security Income for a disability regardless of age; or
- persons receiving Social Security Disability Insurance benefits, regardless of age, whose yearly income does not exceed 250 percent of the 2012 federal poverty guidelines issued by the United States Department of Health and Human Services.

Persons qualifying for such exemptions must apply to the District for such exemption made before July 1 of the applicable tax year, under procedures established by the District or otherwise as required by law or by the Tax Collector. When an exemption has been granted to a parcel, an application for exemption will not have to be re-submitted for such exempt parcel annually, if the facts are such that said parcel continues to qualify for the exemption described in this Measure.

The District will annually provide to the County Tax Collector or other appropriate County tax officials a list of parcels that the District has approved for an exemption as provided for herein.

With respect to all general property tax matters within its jurisdiction, the County Tax Collector or other appropriate County tax official shall make all final determinations of tax exemption or relief for any reason, and that decision shall be final and binding. With respect to matters specific to the levy of the special tax, including the exemptions therefrom as described herein, the application of the definition of "parcel of taxable real property" to any parcel(s) or any other disputed matter specific to the application of the special tax, the decisions of the District shall be final and binding. The procedures described herein, and any additional procedures established by the Board shall be the exclusive claims procedure for claimants seeking an exemption, refund, reduction, or re-computation of the special tax. Whether any particular claim is to be resolved by the District or by the County shall be determined by the District, in coordination with the County as necessary.

EFFECT ON EXISTING MEASURE E PARCEL TAX

If approved by the voters, the parcel tax described in this Measure shall entirely supersede and replace the parcel taxes authorized by the District's voters with the approval of Measure E in 2019, and such Measure E parcel tax shall cease to be in effect as of July 1, 2027. If this Measure is not approved by two-thirds of the voters casting ballots hereon, then the parcel tax authorized by Measure E will continue in effect only until June 30, 2028, at which time that parcel tax and Measure E will cease to be in effect, in accordance with the terms of Measure E.

APPROPRIATIONS LIMIT

To the extent required by the California Constitution and applicable laws, the appropriations limit for the District will be adjusted periodically by the aggregate sum collected by levy of this special tax.

ACCOUNTABILITY AND COMPLIANCE MEASURES

In accordance with California Government Code sections 50075.1 and 50075.3, and as prescribed by the Board of Trustees of the District, the following accountability measures shall apply to the parcel tax levied in accordance with this Measure:

(a) The proceeds of the education parcel tax shall be applied only to the specific purposes identified under the heading "PURPOSE OF THE MEASURE," above.

(b) The proceeds of the special tax shall be deposited into a fund, which shall be kept separate and apart from other funds of the District.

(c) No later than January 1 of each year while the parcel tax is in effect, the chief fiscal officer of the District shall prepare and file with the Board of Trustees of the District a report detailing the amount of funds collected and expended, and the status of any project, programs, or purposes identified under the heading "PURPOSE OF THE MEASURE," above.

(d) The Board will conduct an annual financial audit of the proceeds of the special tax ensuring funds are spent for educational purposes.

(e) The Board shall appoint a Citizens' Oversight Committee for the purpose of reviewing the District's expenditures of proceeds of the education parcel tax to ensure they are expended for the purposes set forth under the heading "PURPOSE OF THE MEASURE," above, and to report annually to the Board and the public regarding the expenditure of such proceeds.

PROTECTION OF FUNDING

Current law forbids any decrease in State or federal funding to the District resulting from the adoption of a parcel tax. However, if any such funding is reduced or affected because of the adoption of this local funding measure, then the Board may reduce the amount of the special taxes levied as necessary in order to restore such State or federal funding and/or maximize the District's fiscal position for the benefit of the District's educational programs. As a result, whether directly or indirectly, no funding from this Measure may be taken away by the State or federal governments.

SEVERABILITY

The Board of Trustees of the District hereby declares, and the voters by approving this Measure concur, that every section, paragraph, sentence and clause of this Measure has independent value, and the Board of Trustees and the voters would have adopted each provision hereof regardless of every other provision hereof. Upon approval of this Measure by the voters, should any part be found by a court of competent jurisdiction to be invalid for any reason, all remaining parts hereof shall remain in full force and effect to the fullest extent allowed by law.